

*Table of Statutes referred to in this Act*

| Short Title                                      | Session and Chapter    |
|--------------------------------------------------|------------------------|
| Nurses Registration (Scotland) Act, 1919 ...     | 9 & 10 Geo. 5. c. 95.  |
| Nurses (Scotland) Act, 1943 ...                  | 6 & 7 Geo. 6. c. 33.   |
| Education (Scotland) Act, 1946 ...               | 9 & 10 Geo. 6. c. 72.  |
| National Health Service (Scotland) Act, 1947 ... | 10 & 11 Geo. 6. c. 27. |

**CHAPTER 96***Auxiliary and Reserve Forces Act, 1949*

## ARRANGEMENT OF SECTIONS

## PART I

## TERRITORIAL ARMY AND ROYAL AUXILIARY AIR FORCE

## Section

1. Establishment of territorial army associations for two or more counties.
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## SCHEDULES:

First Schedule.—Amendment of Enactments.

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An Act to amend the law relating to the Territorial Army, the Royal Auxiliary Air Force, the Naval and Marine Reserves, the Army Reserve and the Air Force Reserve; and for purposes connected therewith.

[16th December 1949.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

## PART I

### TERRITORIAL ARMY AND ROYAL AUXILIARY AIR FORCE

Establishment  
of territorial  
army  
associations  
for two or  
more counties.

1.—(1) An association for the purposes of Part I of the Territorial and Reserve Forces Act, 1907 (hereinafter referred to as “the Act of 1907”) may be established as well for two or more counties as for one county; and in relation to an association so established references in the Act of 1907 to a county or two or more counties, and to county associations, shall be construed accordingly.

(2) The provision to be made under paragraph (c) of subsection (3) of section one of the Act of 1907 for constituting the lieutenant of the county, or failing him such other person as the Army Council may think fit, president of an association shall be, in relation to an association established for two or more counties, provision for constituting president of the association the lieutenant of such one of those counties as the Army Council may from time to time think fit, or, failing any of those lieutenants, such other person as the Army Council may think fit.

(3) The scheme under section one of the Act of 1907 for an association established for two or more counties shall provide for constituting the lieutenant of any of those counties a vice-president of the association in any case where he is not president of the association and is willing to serve as vice-president.

(4) In subsections (1), (2) and (4) of section thirty-nine of the Act of 1907 (which make special provision as respects the Lord Warden of the Cinque Ports, the Warden of the Stannaries and the Governor and Deputy Governor of the Isle of Wight) references to the associations of the counties of Kent, Sussex, Cornwall, Devon and Southampton shall be construed as including respectively references to associations of the county and any other county or counties jointly.

(5) As respects an association established for the City of London and one or more other counties, the Act of 1907 and the

foregoing provisions of this section shall have effect subject to the following provisions, that is to say,—

PART I  
—*cont.*

- (a) subsections (2) and (3) of this section shall apply as if the Lord Mayor of the City of London were the lieutenant of a county, and
- (b) subsection (3) of section thirty-nine of the Act of 1907 (which provides that the Lord Mayor shall ex officio be president of the association of the City of London) shall not apply.

2.—(1) The provisions of subsection (3) of section one of the Constitution Act of 1907 (which relate to the constitution of associations of associations. in accordance with schemes under that section) shall have effect subject to the following provisions of this section.

(2) Any such scheme shall provide for the appointment as members of the association of such number of members or former members of His Majesty's military forces as may be specified in the scheme, not being less than one half of the whole number of the association; and paragraph (d) of the said subsection (3) (which provides that not less than half of the whole number of the association shall be officers representative of all arms and branches of the Territorial Army raised within the county) is hereby repealed.

(3) Any such scheme shall provide for the appointment by the Army Council as members of the association—

- (a) of such number of persons as may be specified in the scheme as representing the Army Cadet Force, the Combined Cadet Force and the Sea Cadet Corps respectively ; and

- (b) of such number of persons as may be so specified as representing employers in, and persons employed in, the area for which the association is established ;

and in paragraph (f) of the said subsection (3) (which provides for co-opted members) the words “ including, if thought desirable, representatives of the interests of employers and workmen ” are hereby repealed.

(4) The power conferred by paragraph (e) of the said subsection (3) to appoint representatives of county and county borough councils shall include power subject to the same provisions—

- (a) to appoint representatives of the councils of county districts within the county or, in the case of the county of London, to appoint representatives of metropolitan borough councils ;
- (b) to appoint a person as representing a county council in its capacity as local education authority, in addition to persons appointed as representing the council generally ; and

**PART I**—*cont.*

- (c) in the case of any county where a joint education board is constituted as the local education authority for the whole or any part of the county, to appoint a representative of that board.

In relation to the City of London references in the said paragraph (e) to county councils shall have effect, and be deemed always to have had effect, as references to the common council of the City.

(5) A scheme under the said section one made before the coming into operation of this section shall after the coming into operation thereof continue in force, until varied or revoked, notwithstanding that the provisions of the scheme do not comply with subsection (3) of that section as amended by this section:

Provided that any such scheme shall cease to have effect on the expiration of six months from the coming into operation of this section unless any amendments of the scheme necessary to bring it into conformity with the said subsection (3) as so amended have previously been made.

- (6) In the application of this section to Scotland, for subsection (4) the following subsection shall be substituted:—

“(4) The power conferred by paragraph (e) of the said subsection (3), as read with section forty of the said Act, to appoint representatives of county councils and town councils of large burghs shall include power, subject to the same provisions,—

- (a) to appoint representatives of the town councils of small burghs and district councils within the county;
- (b) to appoint a person as representing a county council in its capacity as education authority, in addition to persons appointed as representing the council generally; and
- (c) to appoint a person as representing a joint county council in its capacity as education authority for counties combined for the purposes of subsection (1) of section one hundred and eighteen of the Local Government (Scotland) Act, 1947, in addition to persons appointed as representing generally the councils of the separate counties of the combination.

In this subsection the expression ‘small burgh’ has the same meaning as in the Local Government (Scotland) Act, 1947.”

Powers and  
duties of  
associations.

3.—(1) In subsection (1) of section two of the Act of 1907 (which makes it the duty of an association to be acquainted with and conform to the plan of the Army Council for the organisation of the Territorial Army within the area for which

the association is constituted) for the reference to the Territorial Army there shall be substituted a reference to all His Majesty's military forces.

**PART I**  
**—cont.**

(2) Without prejudice to the provisions of the last foregoing subsection, it shall be the duty of an association to make itself acquainted with and conform to the plan of the Admiralty for the organisation within the area for which the association is constituted of the reserves of the Royal Navy and of the reserves of the Royal Marines in so far as that plan relates to matters with respect to which functions are conferred on the association under the next following subsection.

(3) So much of the said subsection (1) of section two of the Act of 1907 as provides for conferring on associations functions connected with the organisation and administration of His Majesty's military forces shall extend to the conferring on the association of functions connected with the organisation and administration of the reserves of the Royal Navy, of the reserves of the Royal Marines, and of the Army Cadet Force, the Combined Cadet Force and the Sea Cadet Corps; and references in that subsection to His Majesty's military forces shall be construed accordingly.

(4) Subject as hereinafter provided, the Admiralty shall pay to an association such sums as in their opinion are required to meet the necessary expenditure connected with the exercise and discharge by the association of the powers and duties conferred on it by virtue of this section; and—

(a) subsections (2) and (3) of section three of the Act of 1907 (which relate to statements of the financial requirements of the association and the application of grants) shall apply in relation to payments under this subsection with the substitution for references to the Army Council of references to the Admiralty;

(b) an association shall keep separate accounts of grants made to the association by the Admiralty and the expenditure thereof, and subsection (5) of the said section three shall apply to those accounts with the substitution for references to the Army Council of references to the Admiralty.

(5) In calculating the payments to be made to an association by the Admiralty under the last foregoing subsection or by the Army Council under subsection (1) of section three of the Act of 1907, regard shall be had only to expenditure incurred by the association in connection with the exercise and discharge of powers and duties relating to matters under the control of the Admiralty or the Army Council, as the case may be; and the Admiralty and the Army Council shall make any apportionment of expenditure necessary for the purposes of this subsection.

**PART I**  
—*cont.*

(6) Subsection (2) of section two of the Act of 1907 (which specifies particular matters in respect of which functions may be conferred on associations) shall have effect subject to the following provisions of this subsection:—

- (a) in ascertaining, under paragraph (e) of that subsection, the times of training best suited to the circumstances of civil life, an association shall have regard to the principal industries of the area for which the association is established, and shall consult with representatives of employers in, and of persons employed in, those industries in the area;
- (b) the proviso to paragraph (f) (which prevents the giving of financial assistance to certain school corps in respect of persons under sixteen) is hereby repealed;
- (c) paragraph (j) (which provides for the payment of separation and other allowances to the families of men of the Territorial Army when embodied or called out on actual military service) is hereby repealed;
- (d) in paragraph (k) (which provides for the registration in conjunction with the military authorities of horses for any of His Majesty's forces) after the word "horses" there shall be inserted the words "vehicles, stores and equipment"; and
- (e) in paragraph (l) (which imposes functions for the care of reservists and discharged soldiers) for the words "care of reservists and discharged soldiers" there shall be substituted the words "welfare of members and former members of His Majesty's military forces and of members and former members of the reserves of the Royal Navy and of the reserves of the Royal Marines".

(7) There shall be defrayed out of moneys provided by Parliament—

- (a) any expenditure under subsection (4) of this section, and
- (b) any increase attributable to the provisions of this section in the sums payable out of such moneys under section three of the Act of 1907 (which provides for grants to meet the expenditure of associations in the discharge of their functions) or that section as applied to the Royal Auxiliary Air Force.

**Conditions of enlistment.**

4. A man of the Territorial Army (other than a man deemed to be enlisted therein for a term of part-time service by virtue of the provisions in that behalf of the National Service Act, 1948) shall be enlisted for service in such corps and shall be posted to such unit in that corps as he may select; and accordingly—

- (a) proviso (a) to subsection (1) of section nine of the Act of 1907 (which provides that a man shall be enlisted

for a county and shall be appointed to serve in such corps for the county, and in such unit in that corps, as he may select) is hereby repealed; and

PART I  
—*cont.*

- (b) in paragraph (ii) of subsection (3) of that section (which provides that a man shall be entitled to be discharged on paying for the use of the association for the county in which he was enlisted a sum not exceeding five pounds) for the words "the association for the county for which he was enlisted" there shall be substituted the words "the association administering the unit in which he is serving, or, if that unit is administered by more than one association, the association administering the part thereof in which he is serving".

5.—(1) Every officer and man of the Territorial Army to whom this section applies shall be liable— Conditions of service.

- (a) to serve in any part of the United Kingdom;
- (b) to be called out for actual military service in any place in the United Kingdom in defence of the United Kingdom against actual or apprehended attack, notwithstanding that the Territorial Army, or the part thereof to which he belongs, has not been embodied; and
- (c) at any time while the Territorial Army, or the part thereof to which he belongs, is embodied, to serve in any place outside the United Kingdom:

Provided that the provisions of paragraph (c) of this subsection shall not apply to any man in whose case it was agreed at the time of his enlistment that he was accepted for home service only.

(2) This section applies to officers accepting commissions in the Territorial Army after the commencement of this Act, and to men entering the Territorial Army (whether on being enlisted or on being deemed to be enlisted or on being re-engaged therein) after the said commencement; and section thirteen of the Act of 1907 (which relates to the area of service of the Territorial Army) shall not apply to officers and men of the Territorial Army to whom this section applies.

(3) A man to whom this section applies may, by order of the competent military authority—

- (a) at any time while the part of the Territorial Army to which he belongs is embodied, be posted without his consent to any unit within his corps or be transferred without his consent to any corps; and
- (b) at any time while he is serving under paragraph (b) of subsection (1) of this section be posted without his consent to any unit within his corps:

Provided that if he continues in territorial army service and so desires there shall, as soon as may be convenient after the

**PART I**  
**—cont.**

end of the period of embodiment or, as the case may be, of the period of his service under paragraph (b) of subsection (1) of this section, be taken all such steps as are necessary to enable him to serve again in the corps and unit in which he was serving at the time when he was first so transferred or posted, as the case may be.

(4) Nothing in the last foregoing subsection shall apply to men serving for a term of part-time service in accordance with the provisions of Part I of the National Service Act, 1948, or affect the transfer or posting of such men.

Calling out  
for home  
defence service  
and termina-  
tion of such  
service.

6.—(1) It shall be lawful for a Secretary of State, at any time when it appears to him that the occasion so requires, to give, and when given to revoke or vary, such directions as he may think fit for calling out for actual military service in accordance with the provisions of paragraph (b) of subsection (1) of the last foregoing section any officer or man of the Territorial Army who by virtue of those provisions is liable to be so called out; and every officer or man called out by the directions shall attend at the place and time appointed by the directions, and shall be deemed to be called out for actual military service at and after that time.

(2) The provisions of section twenty of the Act of 1907 (which relates to punishment for failure to attend on embodiment) shall apply to any man who fails to appear at the time and place appointed by directions given under the last foregoing subsection as they apply to a man who fails to appear at the time and place appointed for assembling on embodiment.

(3) Where a Secretary of State has given any directions under subsection (1) of this section, he may at any time thereafter give such directions as he may think fit for terminating the service under paragraph (b) of subsection (1) of the last foregoing section of officers and men of the Territorial Army called out by the directions under subsection (1) of this section, but without prejudice to the power of the Secretary of State, by further directions given under subsection (1) of this section, to call out for further service any officer or man whose service has been terminated by directions given under this subsection.

(4) If, while an officer or man called out by directions given under subsection (1) of this section is serving under the said paragraph (b), directions are given under section seventeen of the Act of 1907 for embodying the Territorial Army, or the part thereof in which he is serving,—

- . (a) he shall thereupon be deemed to be embodied and his service under the said paragraph (b) shall cease;
- (b) if the proviso to subsection (3) of the last foregoing section applies to him, it shall apply as if for the words



from "the period of embodiment" to "section" there were substituted the words "the period of embodiment."

PART I  
—cont.

7.—(1) The power of His Majesty under section six of the Air Force (Constitution) Act, 1917, to apply by Order in Council to the Royal Auxiliary Air Force or to the officers and men of that force any of the enactments relating to the Territorial Army or to the officers and men of that army shall be extended in accordance with the following provisions of this section.

Application  
of enactments  
to Royal  
Auxiliary  
Air Force.

(2) The said power of His Majesty shall have effect in relation to the foregoing provisions of this Act as it has effect in relation to other enactments relating to the Territorial Army or to the officers and men of that army.

(3) The said power of His Majesty, as extended by the last foregoing subsection, shall include power to apply any of the enactments referred to in the last foregoing subsection with such modifications as may be necessary—

- (a) to provide for the establishment and constitution of a joint association (that is to say, an association having powers and duties in relation both to the Territorial Army and to the Royal Auxiliary Air Force) for two or more counties;
- (b) to provide for the election of two vice-chairmen of any joint association, whether being an association for one or for more than one county;
- (c) to provide for any joint association that of the chairman and vice-chairman or vice-chairmen at least one shall be a military member of the association and at least one shall be an air force member of the association;
- (d) to provide, both as to joint associations and as to auxiliary air force associations, that a person may, notwithstanding his not being a member or former member of His Majesty's air forces, be appointed as an air force member of any such association if specially qualified by his interest in and knowledge of matters relating to aviation; and
- (e) to enable the powers and duties transferred and assigned to any joint association or auxiliary air force association to be extended so as to include the undertaking by the association in relation to the air force reserve of any function undertaken by the association in relation to the Royal Auxiliary Air Force.

In this subsection the expressions "military member" and "air force member" mean respectively a member for whose appointment provision is made by subsection (2) of section two of this Act and by that subsection as applied under the said power of His Majesty.

## PART I

## —cont.

Provisions consequent on renaming of auxiliary air force.

8. In any enactment relating to the auxiliary air force, for the expression “auxiliary air force” wherever that expression occurs (except where it occurs as part of the expression “auxiliary air force association” or as part of the short title of the Auxiliary Air Force and Air Force Reserve Act, 1924), there shall be substituted the expression “Royal Auxiliary Air Force.”

## PART II

## NAVAL AND MARINE RESERVES

Special class of Royal Fleet Reserve

9.—(1) There shall be a special class of the Royal Fleet Reserve, which shall consist of such number of men as the Admiralty may determine, being—

- (a) men who, on engaging or re-engaging in the Royal Fleet Reserve or during a term of engagement or re-engagement therein, agree in writing to be entered in or transferred to the said class and to undertake the liability for service therein hereinafter specified ; or
- (b) men who, having before the commencement of this Act been entered for non-continuous service in the naval service of His Majesty or enlisted to serve in the royal marine forces, on transfer to the Royal Fleet Reserve or during their service therein pursuant to such transfer agree in writing to be entered in or transferred to the said class and to undertake the liability for service therein hereinafter specified ; or
- (c) men entered in the said class in accordance with the following provisions of this section.

(2) Any man who,—

- (a) having been entered for non-continuous service in the naval service of His Majesty after the commencement of this Act ; or
- (b) having been enlisted to serve in the royal marine forces after the commencement of this Act,

is transferred to the Royal Fleet Reserve shall, if on his transfer he was designated by the competent naval authority as a man to whom this subsection applies, be entered in the said special class of the reserve and shall be liable to serve in that class as hereinafter specified.

(3) The following provisions shall have effect as to the duration of service in the said special class of the Royal Fleet Reserve, that is to say—

- (a) a man entered therein or transferred thereto in pursuance of an agreement under paragraph (a) of subsection (1) of this section shall be liable to serve therein until the end of his term of engagement or re-engagement referred to in that paragraph ;

- (b) a man entered in or transferred to the said special class in pursuance of an agreement under paragraph (b) of the said subsection (1) shall be liable to serve therein until the end of his term of service in the Royal Fleet Reserve in pursuance of his transfer to that reserve referred to in the said paragraph (b); and
- (c) a man entered in the said special class by virtue of the provisions of the last foregoing subsection shall be liable to serve therein until the expiration of the first twelve months of his service in the Royal Fleet Reserve and shall then be transferred from the said special class to the general body of the reserve:

Provided that if a man to whom paragraph (c) of this subsection applies agrees in writing to continue to serve in the said special class during the residue of the term for which he is transferred to the Royal Fleet Reserve, he shall be liable to serve in that class in accordance with the agreement.

(4) An agreement made for the purposes of subsection (1) of this section or the proviso to the last foregoing subsection may be revoked by three months' notice in writing.

(5) References in this section to transfer to the Royal Fleet Reserve shall be construed—

- (a) in relation to a man entered for non-continuous service in the naval service of His Majesty, as references to being entered in the Royal Fleet Reserve in pursuance of a liability incurred under the terms of his engagement, in accordance with regulations made by the Admiralty under subsection (1) of section four of the Naval Forces Act, 1903, to serve in the Royal Fleet Reserve after the completion of his term of service in the navy, and
- (b) in relation to a man enlisted to serve in the royal marine forces, as references to being entered in the Royal Fleet Reserve in pursuance of a liability incurred under the terms of his engagement, in accordance with an order made by the Admiralty under section one of the Royal Marines Act, 1857 and section two of the Royal Marines Act, 1948, to serve in the Royal Fleet Reserve after the completion of his term of service in the Royal Marines.

**10.**—(1) Every officer and man of the Royal Naval Reserve (including the Royal Fleet Reserve), the Royal Naval Volunteer Reserve, the Royal Marine Forces Volunteer Reserve and the Royal Naval Special Reserve shall, during the whole of his service therein, be liable to be called into actual service in the event of actual or apprehended attack on the United Kingdom.

Liability of  
naval and  
marine  
reserves to be  
called into  
actual service.

PART II  
—cont.

(2) Every man of the special class of the Royal Fleet Reserve to be constituted in accordance with the provisions of the last foregoing section shall, without prejudice to any liability imposed on him by the last foregoing subsection, be liable during the whole of his service in that class of the reserve to be called into actual service at any time when warlike operations are in preparation or in progress outside the United Kingdom:

Provided that a man shall not without his consent in writing be liable to serve in pursuance of this subsection for a period or periods exceeding twelve months in all.

(3) The foregoing provisions of this section shall be in addition to, and not in substitution for, the provisions of any other enactment under which officers or men of any of the reserves mentioned in this section are liable to be called into actual service.

Supplementary  
provisions as  
to calling out  
of naval and  
marine  
reserves.

11.—(1) It shall be lawful for the Admiralty, at any time when it appears to them that the occasion so requires, to give, and when given to revoke or vary, such directions as they may think fit for calling out any officer or man who by virtue of the last foregoing section is liable to be called into actual service; and every officer and man called out by the directions shall attend at the time and place appointed by the directions, and shall be deemed to be called into actual service at and after that time.

(2) Where the Admiralty have given any directions under the last foregoing subsection, they may at any time thereafter give such directions as they may think fit for terminating the service under the last foregoing section of officers or men called out by the directions under the last foregoing subsection, but without prejudice to the power of the Admiralty by further directions given under the last foregoing subsection to call out for further service any officer or man whose service has been terminated by directions given under this subsection.

(3) Any power of calling out officers or men under the last foregoing section may be exercised without any such communication to Parliament, declaration in Council or proclamation as is mentioned in section four of the Royal Naval Reserve (Volunteer) Act, 1859 (which relates to the calling into actual service of the Royal Naval Reserve); but any exercise of the power of calling men into actual service under subsection (2) of the last foregoing section shall be reported to Parliament as soon as may be.

(4) Subject to the provisions of the last foregoing subsection, the provisions of the said Act of 1859 in their application to the Royal Naval Reserve (including the Royal Fleet Reserve), and the said provisions so far as they are applied—

(a) to the Royal Naval Volunteer Reserve by subsection (2) of section one of the Naval Forces Act, 1903,

- (b) to the Royal Marine Forces Volunteer Reserve by the said subsection (2) and by subsection (2) of section one of the Royal Marines Act, 1948, and
- (c) to the Royal Naval Special Reserve by subsection (2) of section twenty-six of the National Service Act, 1948, or by that subsection and any Order in Council made under subsection (1) of the said section twenty-six,

**PART II**  
—cont.

shall have effect in relation to officers and men called into actual service under the last foregoing section as they have effect in relation to men of the said reserves called into actual service under section four of the said Act of 1859, or under that section as applied as aforesaid.

### PART III

#### ARMY RESERVE AND AIR FORCE RESERVE

**12.**—(1) The provisions of this Part of this Act shall have effect in substitution for the provisions of the Reserve Forces and Militia Act, 1898, section thirty-two of the Act of 1907 and the Reserve Forces Act, 1937 (which authorise the calling out on permanent service of certain men of the army reserve, including the militia). Calling out of  
army reserve  
(including  
militia).

(2) Subject to the provisions of this section, men of the army reserve may be called out on permanent service in the following cases and subject to the following conditions, that is to say:—

- (a) any such man (whether he entered the reserve on transfer or re-engagement or on being enlisted or on being deemed to be enlisted) shall during the whole of his service therein be liable to be so called out for home defence service;
- (b) any man who has been transferred to the first class of the army reserve shall, if on his transfer he was designated by the competent military authority as a man to whom this paragraph applies, be liable to be so called out for overseas service at any time during the first year of his service therein;
- (c) without prejudice to the provisions of the last foregoing paragraph, any man of the army reserve, whether he entered the reserve on transfer or re-engagement or on being enlisted or on being deemed to be enlisted, shall, if he has entered into an agreement in writing to be so liable at the time in question, be liable at any time during his service in the army reserve to be so called out for overseas service:

Provided that a man shall not without his consent in writing be liable to serve under paragraph (b) or (c) of this subsection

**PART III**  
—*cont.*

for a period which, together with any previous period for which he was called out under either of those paragraphs, exceeds twelve months.

(3) A man called out on permanent service under any paragraph of the last foregoing subsection may, while on permanent service, be employed in any service for which, if not previously called out, he could have been called out under that subsection; and if, while having been called out under the last foregoing subsection, any man is on permanent service when the army reserve is called out in pursuance of a proclamation under section twelve of the Reserve Forces Act, 1882, he shall thereafter be deemed to have been called out in pursuance of the proclamation and his service under the last foregoing subsection shall cease.

(4) An agreement made for the purposes of paragraph (c) of subsection (2) of this section may be revoked by three months' notice in writing.

(5) The number of the men liable to be called out by virtue of agreements made for the purposes of paragraph (c) of subsection (2) of this section, being either men of the militia or other men—

(a) deemed to be enlisted in the army reserve for part-time service under the National Service Act, 1948, or

(b) enlisted in the army reserve (whether in pursuance of section two of that Act or otherwise) for service in lieu of part-time service under that Act,

shall not at any one time exceed fifteen thousand.

(6) The aggregate number of the men for the time being designated under paragraph (b) of subsection (2) of this section and men (other than such as are mentioned in the last foregoing subsection) for the time being liable to be called out by virtue of agreements made for the purposes of paragraph (c) thereof shall not exceed thirty thousand.

(7) The number of men for the time being called out under any of the foregoing provisions of this section shall not be reckoned in the number of forces authorised by the Army Act for the time being in force.

(8) Nothing in this section or in any repeal effected by this Act (other than the repeal of any enactment contained in Part I or Part II of the Act of 1907)—

(a) shall apply to a man who was a man of the army reserve at the commencement of this Act, unless and until he re-engages or enlists therein after the commencement of this Act;

- (b) in the case of a man who, being a soldier of the regular forces at the commencement of this Act, has thereafter transferred to the first class of the army reserve, shall apply to him during his service therein as a man so transferred.

PART III  
—cont.

(9) In this section the expression "home defence service" means service at any place in the United Kingdom in defence of the United Kingdom against actual or apprehended attack, and the expression "overseas service" means service when the men in question are required for service outside the United Kingdom when warlike operations are in preparation or in progress.

13.—(1) It shall be lawful for a Secretary of State, at any time when it appears to him that the occasion so requires, to give, and when given to revoke or vary, such directions as he may think fit for calling out on permanent service in accordance with the provisions of subsection (2) of the last foregoing section any man who by virtue of those provisions is liable to be so called out; and every man called out by the directions shall attend at the place and time appointed by the directions, and shall be deemed to be called out on permanent service at and after that time.

Supplementary  
provisions  
as to calling  
out under s. 12.

(2) Where a Secretary of State has given any directions under the last foregoing subsection, he may at any time thereafter give such directions as he may think fit for terminating the service under subsection (2) of the last foregoing section of men called out by the directions under the last foregoing subsection, but without prejudice to the power of the Secretary of State by further directions given under the last foregoing subsection to call out for further service any man whose service has been terminated by directions given under this subsection.

(3) Any power of calling out men under the last foregoing section may be exercised without such proclamation or communication to Parliament as is mentioned in section twelve of the Reserve Forces Act, 1882, and the calling out of men under the last foregoing section shall not involve the meeting of Parliament as required by section thirteen of that Act; but any exercise of the power of calling out men under paragraphs (b) and (c) of subsection (2) of the last foregoing section shall be reported to Parliament as soon as may be.

(4) Subject to the provisions of the last foregoing subsection, men called out under paragraph (a) of subsection (2) of the last foregoing section shall be deemed to be called out under the Reserve Forces Act, 1882.

14. The power of His Majesty under section six of the Air Force (Constitution) Act, 1917, to apply by Order in Council to the air force reserve or to the officers and men of that reserve

Application of  
enactments  
to air force  
reserve.

**PART III**  
—*cont.*

any of the enactments relating to the army reserve or to the officers and men of that reserve shall have effect in relation to the provisions of this Part of this Act as it has effect in relation to other enactments so relating as aforesaid.

Amendment  
of 24 Geo. 5.  
c. 5.

**15.** Section one of the Air Force Reserve (Pilots and Observers) Act, 1934 (which relates to the annual training of pilots and observers of the air force reserve) shall have effect as if, in subsection (2) thereof, after the word "section" there were inserted the words "the expression 'observer' includes navigator."

**PART IV****SUPPLEMENTARY**

Supplementary  
and  
consequential  
provisions, and  
repeals.

**16.**—(1) Section four of the Auxiliary Air Force and Air Force Reserve Act, 1924 (which authorises an Order in Council under the foregoing provisions of that Act to contain supplemental and consequential provisions) shall have effect as if the reference therein to the foregoing provisions of that Act included a reference to the foregoing provisions of this Act.

(2) The enactments mentioned in the first column of the First Schedule to this Act shall have effect subject to the amendments specified in the second column of that Schedule.

(3) The enactments mentioned in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Interpretation.

**17.**—(1) References in this Act to the United Kingdom shall be construed as including the Isle of Man and the Channel Islands.

(2) For the purposes of any provision of this Act relating to service in the United Kingdom, service on any flight of which the points of departure and intended return are within the boundaries of the United Kingdom or of the territorial waters thereof shall be deemed to be service within the United Kingdom notwithstanding that the flight may in its course extend beyond those boundaries.

(3) In this Act the following expressions have the meanings hereby assigned to them respectively, that is to say:—

"Act of 1907" has the meaning assigned to it by section one of this Act;

"competent military authority" means the Army Council or an officer designated by the Army Council; and

"competent naval authority" means the Admiralty or an officer designated by the Admiralty.

(4) This Act shall apply to women as it applies to men.



(5) References in this Act to any enactment shall be construed as references to that enactment as amended or extended by or under any subsequent enactment including this Act.

PART IV  
—cont.

18.—(1) This Act may be cited as the Auxiliary and Reserve Forces Act, 1949. Short title and citation.

(2) The Act of 1907, the Territorial Army and Militia Act, 1921, and this Act, in so far as they apply to the Territorial Army, may be cited together as the Territorial Army Acts, 1907 to 1949.

(3) The Reserve Forces Acts, 1882 to 1907, and the Territorial Army and Militia Act, 1921, and this Act in so far as the two last-mentioned Acts apply to the army reserve (including the militia), may be cited together as the Reserve Forces Acts, 1882 to 1949.

## SCHEDULES

### FIRST SCHEDULE

Section 16.

#### AMENDMENT OF ENACTMENTS

| <i>Enactment to be amended</i>                                  | <i>Amendment</i>                                                                                                                                                                                                                                                                                              |
|-----------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| The Army Act.<br>Section one hundred and seventy-six.           | In paragraph (6A), at the end of sub-paragraph (d) there shall be added the words "or by virtue of section five of the Auxiliary and Reserve Forces Act, 1949".                                                                                                                                               |
| The Air Force Act.<br>Section one hundred and seventy-six.      | In paragraph (6A), at the end of sub-paragraph (d) there shall be inserted the words "or by virtue of section five of the Auxiliary and Reserve Forces Act, 1949, as applied to the Royal Auxiliary Air Force".                                                                                               |
| The Territorial and Reserve Forces Act, 1907.<br>Section seven. | In subsection (4), after the words "shall not", and in subsection (6) after the words "of another arm", there shall be inserted the words "except so far as is authorised by subsection (3) of section five of the Auxiliary and Reserve Forces Act, 1949, and subject to the provisions of that subsection". |
| Section forty.                                                  | In subsection (1), for paragraph (b) there shall be substituted the following paragraph—<br>“(b) the expression ‘county borough council’ means the town council of a large burgh as defined by the Local Government (Scotland) Act, 1947.”                                                                    |
| The National Service Act, 1948.                                 | In section twenty-five, after the words “air force reserve” there shall be inserted the words “the territorial army”.                                                                                                                                                                                         |

## Section 16.

## SECOND SCHEDULE

## ENACTMENTS REPEALED

| Session and Chapter           | Short Title                                   | Extent of Repeal                                                                                                                                                                                                                                                                          |
|-------------------------------|-----------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                               | The Army Act ...                              | In section eighty-eight, in subsection (4), the words "by a proclamation of His Majesty"; in section one hundred and ninety, in paragraph (15), the words from "and where a corps" to the end of the paragraph.                                                                           |
| 61 & 62 Vict. c. 9.           | The Reserve Forces and Militia Act, 1898.     | The whole Act, so far as still in force.                                                                                                                                                                                                                                                  |
| 7 Edw. 7. c. 9.               | The Territorial and Reserve Forces Act, 1907. | In section one, in subsection (3), paragraph (d), and in paragraph (f) the words from "including" to the end of the paragraph; in section two the proviso to paragraph (f), and paragraph (j), of subsection (2); in section nine, proviso (a) to subsection (1); and section thirty-two. |
|                               | The Air Force Act                             | In section eighty-eight, in subsection (4), the words "by a proclamation of His Majesty".                                                                                                                                                                                                 |
| 1 Edw. 8 and 1 Geo. 6. c. 17. | The Reserve Forces Act, 1937.                 | The whole Act.                                                                                                                                                                                                                                                                            |

*Table of Statutes referred to in this Act.*

| Short Title                                                | Session and Chapter         |
|------------------------------------------------------------|-----------------------------|
| Royal Marines Act, 1857 ... ..                             | 20 Vict. c. 1.              |
| Royal Naval Reserve (Volunteer) Act, 1859 ... ..           | 22 & 23 Vict. c. 40.        |
| Reserve Forces Act, 1882 ... ..                            | 45 & 46 Vict. c. 48.        |
| Reserve Forces and Militia Act, 1898 ... ..                | 61 & 62 Vict. c. 9.         |
| Naval Forces Act, 1903... ..                               | 3 Edw. 7. c. 6.             |
| Territorial and Reserve Forces Act, 1907 ... ..            | 7 Edw. 7. c. 9.             |
| Air Force (Constitution) Act, 1917 ... ..                  | 7 & 8 Geo. 5. c. 51.        |
| Territorial Army and Militia Act, 1921 ... ..              | 11 & 12 Geo. 5. c. 37.      |
| Auxiliary Air Force and Air Force Reserve Act, 1924 ... .. | 14 & 15 Geo. 5. c. 15.      |
| Air Force Reserve (Pilots and Observers) Act, 1934 ... ..  | 24 & 25 Geo. 5. c. 5.       |
| Reserve Forces Act, 1937 ... ..                            | 1 Edw. 8 & 1 Geo. 6. c. 17. |
| Local Government (Scotland) Act, 1947 ... ..               | 10 & 11 Geo. 6. c. 43.      |
| Royal Marines Act, 1948 ... ..                             | 11 & 12 Geo. 6. c. 25.      |
| National Service Act, 1948 ... ..                          | 11 & 12 Geo. 6. c. 64.      |